BLANK MASTER TEMPLATE / FOR DISCUSSION

Sales & Purchase Agreement

Petroleum products | Variable commercial schedules

Contract reference	[TO BE COMPLETED]
Effective / signature dates	[TO BE COMPLETED]
Seller	Legal entity / business name: [TO BE COMPLETED] Registration / VAT / EORI: [TO BE COMPLETED] Registered address / country: [TO BE COMPLETED] Representative / title: [TO BE COMPLETED] Verified email / telephone: [TO BE COMPLETED]
Buyer	Legal entity / business name: [TO BE COMPLETED] Registration / VAT / EORI: [TO BE COMPLETED] Registered address / country: [TO BE COMPLETED] Representative / title: [TO BE COMPLETED] Verified email / telephone: [TO BE COMPLETED]

This reusable form contains no client, cargo, price, bank account or signature. Nexora branding is not a representation that an uncompleted form has been approved or executed. The parties must complete the schedules, select consistent delivery and dispute terms, remove unused alternatives and sign the same completed version. Bracketed fields are not contractual defaults.

Schedules A-D form part of this Agreement. Shipment Orders identify individual cargoes; invoices and operational correspondence do not unilaterally amend the Agreement. This form is designed for liquid petroleum products; other product classes require appropriate technical and delivery clauses.

Schedule A | Commercial variables

Product / grade	Product: [TO BE COMPLETED] Grade / intended use: [TO BE COMPLETED] Fixed standard and edition: [TO BE COMPLETED]
Volume / programme	Monthly quantity and unit: [TO BE COMPLETED] Duration and commencement date: [TO BE COMPLETED] Nominal aggregate quantity: [TO BE COMPLETED] Shipment lot / programme: [TO BE COMPLETED] Tolerance, holder of option and application level: [TO BE COMPLETED]
Delivery	Selected Incoterms 2020 rule: [TO BE COMPLETED] Named delivery point / destination: [TO BE COMPLETED] Loading port / terminal: [TO BE COMPLETED] Discharge port / terminal: [TO BE COMPLETED]
Origin	Product origin / refinery / permitted feedstock / route: [TO BE COMPLETED]
Price	Currency / price unit: [TO BE COMPLETED] Exact publication and quotation code: [TO BE COMPLETED] Differential / included costs: [TO BE COMPLETED] Pricing window, calendar and timezone: [TO BE COMPLETED] Provisional price / rounding / fallback: [TO BE COMPLETED]
Direct bank payment	Advance percentage / amount and due date: [TO BE COMPLETED] Balance and payment trigger / due date: [TO BE COMPLETED] Advance and balance percentages must total 100%. No DLC, SBLC or equivalent bank instrument is contemplated.
Inspection / insurance	Independent inspector / verification contact: [TO BE COMPLETED] Cargo insurer / cover / sum insured / risk start: [TO BE COMPLETED]
Law and dispute forum	Governing law: [TO BE COMPLETED] Court jurisdiction OR arbitration rules / seat / language / number of arbitrators: [TO BE COMPLETED] Select one coherent dispute mechanism; no default forum is selected.

Master terms | Formation & payment

1. Scope and completion

Seller sells and Buyer purchases the Product and quantities expressly agreed in Schedule A. Product, grade, specification, price mechanics, quantities, timing, delivery and payment terms must be completed before execution. No supply undertaking arises merely from circulation of this blank form. Each party verifies the counterparty, authority and lawful supply/receiving capability. No invoice, allocation letter or operational message unilaterally changes these terms.

2. Quantity and price determination

The agreed unit, tolerance and who may exercise it are specified in Schedule A; tolerances are not counted twice. Loading quantity is independently certified net quantity, excluding free water and sediment, measured under the methods and reference conditions in Schedule B. Shore and vessel figures are reconciled before final invoicing. The exact price source, unit, differential, averaging window, calendar, rounding, provisional price and successor mechanism are fixed in Schedule A. A discontinued benchmark requires an agreed economically equivalent successor before a new cargo is committed. Taxes, freight, insurance and handling charges follow the selected delivery rule and explicit cost allocation; charges already included may not be charged twice.

3. Advance by direct bank transfer

Buyer pays the agreed advance in cleared funds to the independently verified Seller account only after receipt of the provisional invoice and the complete preliminary package in Schedule C. The percentage, provisional pricing basis and payment deadline are completed in Schedule A. The parties permit independent verification directly with the document issuers using independently verified contacts. Allocation documents are not proof of title or a bank/performance guarantee. No documentary or standby credit, guarantee-based settlement, crypto settlement or physical cash is provided by this form. The parties expressly acknowledge that an advance without separate security remains exposed to counterparty default.

4. Final balance and document control

Seller presents the final invoice and complete agreed final package after loading. The balance equals the final invoice calculated under Schedule A less the advance actually received. Buyer identifies specific documentary defects within one Banking Day; Seller promptly cures them. The compliant undisputed balance falls due at the time expressly completed in Schedule A. A genuine defect affecting legality, title, shipment identity, quantity or quality suspends only the affected amount until cured. No unilateral new payment condition may be added. Seller retains control of negotiable originals pending cleared final payment and transfers them within one Banking Day after receipt. The parties must agree a carrier-compatible sequence in Schedule C; document copies do not release cargo.

5. Failure to load and refund

The agreed loading longstop appears in Schedule C. If Seller fails to load by that date without an agreed extension, Buyer may terminate the affected order and Seller refunds its unused advance within five Banking Days. Financing costs or unperformed supply costs are not deductible. On Buyer default, Seller may recover documented recoverable direct losses subject to mitigation, avoided costs and resale proceeds, and refunds any surplus advance; no automatic forfeiture applies. Overpayments are reconciled and refunded within five Banking Days. Force majeure does not permit indefinite retention of advances for undelivered cargo.

6. Delivery risk and title

Delivery and risk pass at the point prescribed by the expressly selected Incoterms 2020 rule and named place in Schedule A. For FOB, CFR and CIF this is on board at the loading port, not arrival at destination. Seller remains responsible for its breach and non-conformity existing at risk transfer. Good title free from liens passes upon cleared final payment and effective transfer of the corresponding negotiable transport document, subject to mandatory property law and third-party rights. Buyer has the necessary insurable interest from risk transfer.

7. Carriage and cargo insurance

For FOB, Buyer arranges main carriage and cargo cover from loading. For CFR, Seller arranges main carriage to the named discharge port and Buyer arranges cargo cover from loading. For CIF, Seller arranges carriage and the cargo insurance required by that rule, including the higher cover, war/strikes scope or insured amount expressly agreed in Schedule A. The selected allocation is exclusive; unused alternatives are deleted before execution. Provide insurer/broker evidence before loading. Vessel P&I/hull insurance is not cargo insurance. No insurer is bound solely by this SPA.

8. Vessel and terminal

The carriage-responsible party nominates a suitable clean-products vessel at least ten calendar days before laycan, unless otherwise agreed, with IMO, flag, class, Q88, P&I, ETA and prior cargoes. The other party accepts or gives reasonable documented objections within 48 hours. Replacement vessels undergo equivalent checks. Applicable maritime safety, sanctions and terminal-vetting requirements apply. Buyer confirms safe compatible receiving capacity, berth, import permissions, connections and pumping limits. ETA notices are supplied where operationally available. Carrier operations and release instructions must align with the agreed payment sequence.

9. Laytime, demurrage and costs

Schedule C must state the incorporated charterparty provisions or a complete agreed extract, allowed laytime, demurrage rate and currency, valid Notice of Readiness requirements, commencement, exclusions, pumping warranty, weather/port treatment and despatch, if any. No undisclosed charterparty term binds Buyer. Costs are allocated to the party whose breach or agreed sphere of responsibility caused them, subject to mitigation and evidence; Buyer is not liable for Seller or carrier fault merely because a delay occurs at destination. Claims require a calculation, NOR, statement of facts, time sheets and supporting invoices within 60 calendar days after discharge, failing which the claim is barred except fraud or mandatory law.

10. Safety and permits

Seller is responsible for lawful export and safe loading within its control; Buyer for import permits, excise/customs arrangements and safe receiving/storage facilities within its control. Seller supplies current safety data and legally required cargo information. Both parties cooperate on spill response, terminal compatibility and incident reporting. Risk transfer does not discharge either party's statutory environmental duties or liability for its own conduct. Tank-to-tank, dip-and-pay and terminal-transfer structures are outside this CFR template and require a separately executed agreement.

11. Product-specific quality

Product must meet the complete agreed specification, fixed standard edition, destination and seasonal grade in Schedule B. A sulphur, octane or freezing-point label alone is not a complete specification. Seller pays the nominated independent loading inspector. Its certificates are conclusive for loading results absent fraud or manifest error, without excusing latent pre-transfer defects or Seller-caused contamination. Discharge inspection may be obtained at Buyer cost. Transit and destination contamination are allocated according to causation and the agreed risk point.

12. Sampling, notice and remedies

The inspector takes representative sealed samples of each shipment under the agreed standard, identifying tank/lot, date, location, seals and chain of custody. Three sets are retained by inspector/Seller/Buyer or held to their order for at least 180 days after discharge, longer if a timely claim remains open. Buyer notifies apparent quality/quantity claims within seven Banking Days after discharge, with available evidence; a latent defect not reasonably discoverable then must be notified within seven Banking Days of discovery and in any event within 90 calendar days of discharge, except fraud or mandatory law. Evidence not yet available follows promptly. Failure bars the affected claim only, not unrelated rights. For a disputed test, parties appoint an independent accredited laboratory within five Banking Days; failing agreement, either may request appointment by the ICC International Centre for ADR under its applicable appointment rules. The expert determines the technical test issue only, subject to fraud or manifest error; legal liability remains for arbitration. For proven pre-transfer non-conformity, Buyer may seek an agreed price reduction, prompt replacement or rejection/refund for a material defect, plus recoverable direct losses under clause 15. No automatic acceptance applies to fuel outside mandatory specification. Destination contamination or Buyer's improper handling is Buyer's responsibility to the extent causative.

13. Sanctions, origin and integrity

Each party complies with laws applicable to it and the transaction, including relevant EU, UN, UK and US sanctions where applicable, AML, anti-bribery, export/import and end-use rules. Neither party is required to act contrary to mandatory law applicable to it. Before advance and again before loading, Seller supplies the refinery/production country, origin and routing evidence, and evidence of crude feedstock provenance where applicable, sufficient for the destination's restrictions. A third-country refining certificate alone is not conclusive proof of permitted crude origin. No prohibited blending, evasion, concealment, vessel or bank may be used. Both parties supply verified corporate, UBO, authority and source-of-funds information reasonably required; it is confidential and limited to lawful transaction purposes. Neither party is obligated to accept physical cash, third-party account payments or undisclosed intermediaries. Anti-bribery applies to all agents and fees.

14. Compliance suspension

A party may suspend the affected performance on a documented reasonable concern of illegality, sanctions, fraud or AML breach, promptly notifying the other to the extent lawful. It requests evidence and reviews it without unreasonable delay; suspicion alone is not an unrestricted right to retain money or cancel unrelated shipments. If performance is unlawful or the material concern is not resolved within ten Banking Days, either party may terminate the affected shipment; unused advances are refunded within five Banking Days, subject only to mandatory asset-freeze rules. Required funds remain segregated in accounting records pending lawful disposition. No clause requires prohibited payment or disclosure.

15. Default and liability

A material breach not cured within ten Banking Days after a notice specifying it permits termination of the affected shipment; repeated or fundamental breach may justify master termination. For overdue payment Seller may suspend the affected shipment immediately on notice and terminate it after five Banking Days without cure. No cure period is required for irremediable fraud, prohibited performance or insolvency to the extent lawful. Termination does not prejudice accrued payment, refund or claim rights. Parties mitigate losses and avoid double recovery. Each party's aggregate liability for claims arising from a shipment is capped at its final invoice value. This cap does not limit Buyer's price debt, Seller's refund obligations, title obligations, fraud, wilful misconduct, bribery, sanctions breach or liability that cannot lawfully be limited. Neither party recovers indirect/consequential loss, lost profit or punitive damages, subject to those same exceptions. Proven reasonable direct cover, inspection, freight or disposal loss is not excluded solely because it is a third-party cost.

16. Force majeure and hardship

Relief requires proof that performance is prevented by an event beyond reasonable control, not reasonably foreseeable at execution and not reasonably avoidable or overcome. Notice is due promptly and within five Banking Days, stating impact, evidence, mitigation and expected duration. A supplier failure qualifies only if the underlying event and inability reasonably to source an alternative meet that test. Price movement, reduced margin, lack of funds or inability to obtain financing alone do not qualify. Relief is limited to the affected obligation and duration; accrued payment and refund obligations remain due unless payment itself is legally prohibited. After 90 consecutive calendar days either party may terminate affected undelivered shipments and recover unused advances under clause 5. Material exceptional hardship prompts good-faith discussions for 15 Banking Days but does not permit unilateral price amendment or suspension; unresolved disputes follow clause 17.

17. Governing law and dispute resolution

The law and exclusive court jurisdiction OR arbitration mechanism are expressly completed in Schedule A; no alternative is selected by this blank template. Where arbitration is selected, the rules, legal seat, language and tribunal size must be specified. CISG is excluded to the extent it might otherwise apply. Mandatory jurisdiction and lawful urgent protective relief remain available. Technical expert findings bind only within their technical scope; legal disputes follow the selected forum.

18. Confidentiality and intermediaries

Commercial terms, prices, banking and due-diligence records are confidential, except disclosure to authorized personnel, verified transaction counterparties, banks, insurers, professional advisers or authorities on a need-to-know/legal basis. Existing MCNDA obligations continue; this clause creates no disclosure right over another client's or broker's confidential terms. Commissions, if any, are governed only by separate signed agreements; a broker has no authority to bind Seller or Buyer without express written authority. No partnership, agency or fiduciary relationship is created. Neither party may assign contractual obligations without prior written consent; an assignment of receivables does not change payment instructions without clause 19 verification.

19. Notices and bank fraud

Banking Day means a day on which banks are open for transfers in the agreed settlement currency in its principal clearing centre and the receiving-account jurisdiction. Verified notice addresses and telephone numbers are completed for each party. Notices are received on acknowledgement or verifiable delivery to the designated system, with after-hours receipt on the next Banking Day. Bank changes require signed instructions, secure transmission and an independent callback to a previously verified number. Payment to an unauthorized substitute account does not discharge the debt unless properly authorized or ratified, subject to applicable law and proven fault. Parties report suspected compromise, seek recall and preserve evidence.

20. Entire agreement and signing

The completed Agreement supersedes prior commercial negotiations; separate confidentiality and commission agreements survive within their scope. Precedence is mandatory law, later signed amendment expressly identifying the changed provision, completed Schedule A, main clauses, Schedule B and shipment-specific Schedule C. Shipment Orders, invoices and undisclosed charterparty terms cannot silently override payment, liability, title or dispute provisions. Amendments require both authorized signatures. Agreed electronic counterparts may be originals without later paper exchange. Identity, authority, exact version, signature consent and delivery must be evidenced. A pasted signature image is not automatically a qualified signature. Severability, non-waiver and survival of accrued payment/refund, confidentiality, liability and dispute rights apply.

Schedule B | Product specification

Product identity	Product / grade / use: [TO BE COMPLETED]
Normative basis	Exact standard(s), edition and destination annex: [TO BE COMPLETED]
Full quality requirements	Attach agreed full parameter / limit / unit / test-method sheet. Specification reference, version and date: [TO BE COMPLETED]
Selected grade variables	For diesel: sulphur, FAME, seasonal class / CFPP and destination requirements. For petrol: octane, ethanol/oxygen, volatility and seasonal grade. For jet fuel: grade, freezing/flash point, additives, batch release and aviation quality procedures. Selected values and units: [TO BE COMPLETED] Delete unused product alternatives.
Origin and traceability	Refinery, production country, crude-feedstock evidence and chain of custody: [TO BE COMPLETED]
Quantity / sampling	Unit / reference temperature / measurement and calculation methods: [TO BE COMPLETED] Sampling standard / sealed sets / custody / laboratory: [TO BE COMPLETED]
Independent verification	Inspector / issuing office / independently verified contact: [TO BE COMPLETED]
Safety and handling	SDS, storage, compatibility, contamination controls and mandatory transport information: [TO BE COMPLETED]

The complete technical schedule must be agreed and attached before signature. No illustrative product name, selected property or marketing description substitutes for the applicable full specification. The parties shall verify standards and mandatory destination requirements for each transaction.

Schedule C | Shipment & documents

Order identification	SPA / shipment order / month: [TO BE COMPLETED]
Cargo and amounts	Quantity / tolerance / provisional price / invoice / advance: [TO BE COMPLETED]
Ports / dates	Loading and discharge terminals: [TO BE COMPLETED] Laycan start / end and final loading longstop: [TO BE COMPLETED]
Vessel / carriage	Nominating party / vessel / IMO / Q88 / P&I;: [TO BE COMPLETED] Agreed carriage or charterparty extract: [TO BE COMPLETED]
Laytime / costs	Allowed laytime / valid NOR / commencement: [TO BE COMPLETED] Demurrage rate / currency / despatch / exclusions / pumping: [TO BE COMPLETED]
Insurance / receiving	Cargo policy / risk inception / evidence: [TO BE COMPLETED] Import, terminal and receiving approvals: [TO BE COMPLETED]
Preliminary package	Agreed closed list of invoice, independently verified allocation/supply, terminal/loading, vessel, origin and insurance documents, with N/A items expressly identified: [TO BE COMPLETED]
Final package	Agreed closed list of final invoice/price calculation, clean on-board transport document, quality/quantity certificates, origin, manifest, reconciliation and mandatory product/destination documents: [TO BE COMPLETED]
Document release	Original set count, endorsement/consignee, release timing or agreed electronic B/L control framework: [TO BE COMPLETED]

No additional payment document is imposed unilaterally. Product-specific certificates and lawful mandatory documents must be identified before payment is due. Any documentary or payment sequence must be operationally compatible with the carrier. Further cargoes use separate signed orders under the same master reference.

Schedule D | Banking & execution

Seller beneficiary	Legal account holder: [TO BE COMPLETED] Bank / branch / address / country: [TO BE COMPLETED] Account / IBAN / currency / SWIFT: [TO BE COMPLETED] Routing / intermediary if required: [TO BE COMPLETED]
Buyer remitting account	Legal account holder / bank / country / account / SWIFT: [TO BE COMPLETED]
Verification	Previously verified callback numbers: [TO BE COMPLETED] Verification date / authorized persons / instruction version: [TO BE COMPLETED]
Transfer costs	Sending / intermediary / receiving charges and net-credit requirement: [TO BE COMPLETED]

Authorized signatures

The signatories confirm authority, acceptance of the completed commercial and technical schedules, and receipt of the same final version. This blank form carries no signature or company stamp. Dates and references are inserted only in the completed version.

For Seller	Legal entity: [TO BE COMPLETED] Name / title: [TO BE COMPLETED] Signature: _____ Date / place: _____ Company stamp, if used: _____
For Buyer	Legal entity: [TO BE COMPLETED] Name / title: [TO BE COMPLETED] Signature: _____ Date / place: _____ Company stamp, if used: _____